

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No: 2026-066952

In the matter between:

WILBUR WILLIAM MATTHEE

(Identity Number: 8909035151087)

Applicant

and

BRUNO FERNANDES (Lead Independent Director)

First Respondent

DR NKATEKO MUNISI (Chairperson: Social and Ethics Committee)

Second Respondent

MS ALICE LE ROUX (Chairperson: Audit and Risk Committee)

Third Respondent

MR GERALD VAN WYK (Chief Executive Officer)

Fourth Respondent

LSM MPUMLWANA (Group Company Secretary)

Fifth Respondent

AFROCENTRIC INVESTMENT CORPORATION LIMITED (Registration

No. 1988/000570/06, JSE: ACT)

Sixth Respondent

NOTICE OF MOTION

TO: THE REGISTRAR OF THE HIGH COURT, CAPE TOWN

AND TO: THE FIRST TO SIXTH RESPONDENTS

TAKE NOTICE that the Applicant hereby moves this application out of the urgent motion track previously initiated under Case No: 2026-066952, and

enrols this matter afresh as an application on the Ordinary Opposed Motion Roll to be determined on a date allocated by the Registrar in terms of Rule 6 of the Uniform Rules of Court.

TAKE FURTHER NOTICE that the Applicant intends to make application to this Honourable Court on a date to be determined by the Registrar for the relief set out below.

TAKE FURTHER NOTICE that this application is brought as a motion in terms of Rule 6 of the Uniform Rules of Court.

TAKE FURTHER NOTICE that the Applicant's Founding Affidavit, together with the Annexure thereto, is served on you simultaneously herewith and forms the evidentiary basis for the relief sought.

TAKE FURTHER NOTICE that if you intend to oppose this application you are required to:

- (a) deliver a notice of intention to oppose this application to the Applicant at 15 Bellevue Street, Voorbrug, Cape Town, 7100 and/or by email to info@ethichawks.co.za, within the time period prescribed by the Rules;
- (b) thereafter deliver your answering affidavit, if any, to the Applicant at the aforesaid address within the further period prescribed by the Rules.

TAKE NOTICE FURTHER that if you fail to file a notice of intention to oppose, or fail to deliver an answering affidavit within the time allowed, the matter will be enrolled as an unopposed application and the Applicant will move for the relief set out below.

RELIEF SOUGHT

PART A — PRIMARY STATUTORY FINDING

1. That this Honourable Court declare, as a primary and standalone finding, that:
 - 1.1 Each of the First to Fourth Respondents received formal notification of alleged discriminatory and retaliatory conduct in terms of Section 60(1) of the Employment Equity Act 55 of 1998 (“the EEA”) upon their receipt of the Priority 1 Material Risk Report dated 9 December 2025 (“the P1 Report”);
 - 1.2 Each of the First to Fourth Respondents failed to take the steps required by Section 60(2) of the EEA following receipt of that notification;
 - 1.3 By operation of Section 60(3) of the EEA, the First to Fourth Respondents, in their individual capacities as directors of AfroCentric Investment Corporation Limited, are deemed to have contravened the EEA; and
 - 1.4 That deemed contravention, committed by directors in the course of managing the governance affairs of a JSE-listed public company, constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and Section 162(5)(d) of the Companies Act 71 of 2008 (“the Act”), and provides an independent and self-standing statutory basis for the delinquency orders sought in Part B below.

PART B — DELINQUENCY

2. That BRUNO FERNANDES, in his/her capacity as Lead Independent Director of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven (7) years as determined by this Honourable Court in terms of Section

162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;

3. That DR NKATEKO MUNISI, in his/her capacity as Chairperson of the Social and Ethics Committee of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven (7) years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
4. That MS ALICE LE ROUX, in his/her capacity as Chairperson of the Audit and Risk Committee of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven (7) years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
5. That MR GERALD VAN WYK, in his/her capacity as Chief Executive Officer of the Company, be declared a delinquent director in terms of Section 162(5)(c) and/or Section 162(5)(d) of the Act, with the delinquency declaration to take effect for a period not less than seven (7) years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;
6. That LSM MPUMLWANA, in her capacity as Group Company Secretary of the Company, be declared a delinquent officer in terms of Section 162(5)(c) and/or Section 162(5)(d), read with Section 162(2)(d), of the Act, with the delinquency declaration to take effect for a period not less than seven (7) years as determined by this Honourable Court in terms of Section 162(10) of the Act, with the further consequences prescribed by Section 162(6) of the Act;

PART C (ALTERNATIVE) — PROBATION

7. That the First to Fifth Respondents, or any one or more of them, be placed under probation in terms of Section 162(7) of the Act, on such terms and conditions as this Honourable Court deems appropriate, for a period not less than one (1) year;

PART D — COSTS

8. That the First to Fifth Respondents, jointly and severally, the one paying the other to be absolved, be ordered to pay the costs of this application on the attorney-and-client scale, de bonis propriis (out of their own pockets), such costs to be paid personally by the First to Fifth Respondents and not by the Sixth Respondent, on the scale as between attorney and client, including the costs of senior counsel where employed;
9. That in the event that the Sixth Respondent is ordered to pay any costs, such costs be recoverable from the First to Fifth Respondents personally on the attorney-and-client scale;

PART E — FURTHER AND/OR ALTERNATIVE RELIEF

10. That this Honourable Court grant such further and/or alternative relief as it deems just and equitable in the circumstances.

This Notice of Motion is supported by the Founding Affidavit of WILBUR WILLIAM MATTHEE, deposed to on 20 June 2026, together with the Annexure marked “A” thereto, which is served and filed simultaneously herewith.

Dated at Cape Town on this 20th day of June 2026.

WILBUR WILLIAM MATTHEE

APPLICANT — SELF-REPRESENTED

15 Bellevue Street, Voorbrug, Cape Town, 7100

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